

Both the shortened one-year statute of limitations provision, as well as the one-sided limitation on liability cause the CSA to be permeated by substantively unconscionable terms.

The CSA is accordingly unconscionable and incapable of severance.

15. 9:00 AM CASE NUMBER: C25-02683
CASE NAME: ASCENT INVESTMENTS COMPANY LLC VS. PREMDIP DHOOT
HEARING IN RE: APPLICATION AND HEARING FOR RIGHT TO ATTACH ORDER AND ORDER FOR
ISSUANCE OF WRIT RE: HD 2670 WALNUT BLVD MEMBER, LLC AND PREMDIP S. DHOOT
FILED BY: ASCENT INVESTMENTS COMPANY LLC

TENTATIVE RULING:

The Court continues Plaintiff Ascent Investments' hearing for a Right to Attach Order and Order for Issuance of a Writ, filed on November 3, 2025, *sua sponte*. The Court exercises its discretion to consider and review the late opposition filed by Defendants. This hearing is continued to March 11, 2026 at 9:00 a.m. Plaintiff's reply brief is due five (5) court days prior to the hearing. No appearance is required at the hearing on January 16, 2026.

Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C23-01038
CASE NAME: DELVAN KITCHING VS. CARYN CASS
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER AND AMENDED RESPONSES TO**
REQUEST FOR ADMISSIONS, SET ONE
FILED BY: KITCHING, DELVAN

TENTATIVE RULING:

The Discovery Motions for Lines 16, 17, 18 were vacated per the Court's Order appointing a Discovery Referee filed on January 14, 2026. No appearance is required on January 21, 2026. .

17. 9:01 AM CASE NUMBER: C23-01038
CASE NAME: DELVAN KITCHING VS. CARYN CASS
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER AND AMENDED RESPONSES TO**
REQUEST FOR FORM INTERROGATORIES, SET ONE
FILED BY: KITCHING, DELVAN

TENTATIVE RULING:

See Line 16.

18. 9:01 AM CASE NUMBER: C23-01038
CASE NAME: DELVAN KITCHING VS. CARYN CASS
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER AND AMENDED RESPONSES TO**
REQUEST FOR SPECIAL INTERROGATORIES, SET ONE
FILED BY: KITCHING, DELVAN

TENTATIVE RULING:

See Line 16.